

25PSCV02896 25PSCV02896

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-08-11

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CG%2C08%2F11%2F2026

Source SHA-256: 9f0325fdf78f7c0ced8c5628d644aa748b70cb81ca81aa2552b013d0ade6db85

Case Number: 25PSCV02896 Hearing Date: August 11, 2026 Dept: G

Plaintiff City of El Monte's Applications for
Default Judgment

Respondent: NO OPPOSITION

TENTATIVE
RULING

Plaintiff

City of El Monte's Applications for Default Judgment are CONTINUED.

BACKGROUND

This

is a nuisance abatement action. On September 5, 2024, plaintiff City of El Monte (the City) allegedly executed a search warrant on residential real property owned by defendant Miguel Sahagun (Sahagun) and managed by defendants Christian Dominic Palomeque (Palomeque) and Jesse J. Andrade (Andrade). During the search, the City allegedly discovered illegal marijuana cultivation, marijuana-related products, a firearm with ammunition, an air rifle, currency, an ATM, and surveillance systems on the property.

On

August 8, 2026, the City filed the Complaint, alleging causes of action for

On

June 7, 2021, the City filed the Complaint, alleging causes of action for (1)

narcotics abatement, (2) public nuisance, (3) unlicensed commercial cannabis activity, (4) property maintenance, and (5) violation of the Medicinal and Adult Use Cannabis Regulation and Safety Act.

On

January 5, 2026, the court entered default against Sahagun. On April 23, 2026, the court entered default against Andrade. On May 26, 2026, the court entered default against Palomeque.

On August 5, 2026, the City filed these applications for default judgment.

The

applications are set for hearing on August 11, 2026.

REQUESTS

FOR JUDICIAL NOTICE

The

City requests that the court take judicial notice of search warrants, documents previously filed with the court, and grant deeds. The court may take judicial notice of official acts of the government, the records of any California court, and of facts and propositions that are not reasonably subject to dispute. (See Evid. Code, §§ 452, subds. (c), (d)(1), (h).) Thus, the court takes judicial notice of the requested records.

ANALYSIS

The City seeks

default judgment against Sahagun, Andrade, and Palomeque (collectively, Defendants). For the following reasons, the applications for default judgment are CONTINUED.

Legal

Standard

Code of Civil

Procedure section 585 permits entry of a default judgment after a party has filed to timely respond or appear. A party seeking judgment on the default by the court must file a Request for Court Judgment, and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support

of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) a declaration of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court, rule 3.1800.)

Discussion

The City seeks

default judgment against Defendants in the total amount of \$2,191,642.41, including separate liability for \$1,975,000.00 demanded in the Complaint against Sahagun, separate liability for \$34,500.00 demanded in the Complaint against Andrade, separate liability for \$158,000.00 demanded in the Complaint against Palomeque, joint and several liability for \$577.41 in costs, and joint and several liability for \$23,565.00 in attorney's fees. ([Proposed Judgment], ¶¶ 1–3, 8–20; 8/5/2026 CIV-100 Re: Sahagun, ¶¶ 2, 7; 8/5/2026 CIV-100 Re: Andrade, ¶¶ 2, 7; 8/5/2026 CIV-100 Re: Palomeque, ¶¶ 2, 7.) The City submitted sufficient evidence to prove its damages. (See Cowell Decl., ¶¶ 1, 3–16, 19, 21; see also COE, Exhs. 1–10.)

However, the City

failed to dismiss Does 1 through 10 or file an application for separate judgment. (See Cal. Rules of Court, rule 3.1800(a)(7).)

Therefore, the applications

for default judgment are CONTINUED.

CONCLUSION

For these reasons, the applications for default judgment are CONTINUED to a date to be determined at the hearing in Department G (Pomona).